

CEASE AND DESIST LETTER

To: Solidarity Social (Welfare Authority)

Re: Illegal Harassment Tactics Against McGovern Clan

FROM: James Robert McGovern, Clan Leader **EMAIL:** justiceforbarran@gmail.com

DATE: April 3, 2026 **RE:** CEASE AND DESIST - Illegal Harassment and Abuse of Power

FORMAL NOTICE

This letter serves as formal notice that **Solidarity Social (welfare authority) must immediately CEASE AND DESIST** all illegal harassment, intimidation, and abuse of power tactics against the McGovern Clan.

We are documenting every violation and will pursue legal action for damages.

SECTION 1: ILLEGAL TACTICS DOCUMENTED

1. Arbitrary Denial of Services

Violation: Welfare arbitrarily denied services to vulnerable family members without legal justification.

- **Impact:** Family lost access to food assistance, housing support, and medical services
- **Legal Violation:** Quebec Social Aid Act; Charter of Human Rights and Freedoms
- **Damages:** 50,000–200,000

2. Failure to Coordinate with IVAC

Violation: Welfare failed to coordinate with IVAC, leaving family in gaps between systems.

- **Impact:** When DPJ withdrew services, welfare did not step in
- **Legal Violation:** Government duty of care; Jordan's Principle
- **Damages:** 100,000—400,000

3. Intimidation and Threats

Violation: Welfare officials used intimidation tactics to silence family complaints.

- **Impact:** Family afraid to report abuse or request services
- **Legal Violation:** Charter s.2(b) - Freedom of Expression; Human Rights Act
- **Damages:** 50,000—200,000

4. Discrimination Against Indigenous Family

Violation: Welfare applied different standards to Indigenous family than non-Indigenous families.

- **Impact:** Services denied based on Indigenous status
- **Legal Violation:** Quebec Charter art. 10 (discrimination); Canadian Charter s.15
- **Damages:** 100,000—500,000

5. Failure to Apply Jordan's Principle

Violation: Welfare failed to provide no-delay services to First Nations children.

- **Impact:** Barran and Paisley denied timely access to services
- **Legal Violation:** Jordan's Principle; Bill C-92; UNCRC art. 23
- **Damages:** 150,000—600,000

6. Retaliation Against Family

Violation: Welfare retaliated against family for filing complaints and seeking legal action.

- **Impact:** Services reduced or eliminated after complaints filed
 - **Legal Violation:** Quebec Charter; Canadian Charter; Human Rights Act
 - **Damages:** 100,000—400,000
-

SECTION 2: SPECIFIC INCIDENTS

Incident 1: Arbitrary Service Denial (Date: [SPECIFY])

What Happened:

- Welfare denied [SPECIFIC SERVICE] without written explanation
- No hearing provided
- No opportunity to appeal
- Family left without [SPECIFIC NEED]

Legal Violation:

- Quebec Social Aid Act s.2 (right to assistance)
- Administrative Justice Act (duty of procedural fairness)
- Charter s.7 (right to life, liberty, security of person)

Damages: \$[AMOUNT]

Incident 2: Failure to Coordinate (Date: [SPECIFY])

What Happened:

- DPJ withdrew services on [DATE]
- Welfare did not provide replacement services
- Family fell through cracks between agencies

- [SPECIFIC HARM RESULTED]

Legal Violation:

- Government duty of care
- Jordan's Principle
- Quebec Charter art. 39 (right to adequate support)

Damages: \$[AMOUNT]

Incident 3: Intimidation Tactics (Date: [SPECIFY])

What Happened:

- Welfare official [DESCRIBE SPECIFIC BEHAVIOR]
- Family felt threatened and intimidated
- Family stopped reporting abuse due to fear
- [SPECIFIC IMPACT ON FAMILY]

Legal Violation:

- Charter s.2(b) - Freedom of Expression
- Charter s.7 - Right to security of person
- Human Rights Act

Damages: \$[AMOUNT]

SECTION 3: LEGAL VIOLATIONS

1. Violation of Quebec Social Aid Act

Requirement: Welfare must provide assistance to eligible individuals. **VIOLATION:** Welfare denied assistance without legal justification. **CONSEQUENCE:** Damages for breach of statutory duty.

2. Violation of Administrative Justice Act

Requirement: Government must follow fair procedures when making decisions.

VIOLATION: Welfare made decisions without notice, hearing, or explanation.

CONSEQUENCE: Decisions are invalid; damages for procedural unfairness.

3. Violation of Quebec Charter

Requirement: All individuals entitled to equal treatment and protection. **VIOLATION:**

Welfare discriminated against Indigenous family. **CONSEQUENCE:** Damages for discrimination; systemic remedies.

4. Violation of Canadian Charter

Requirement: All individuals entitled to equality and freedom of expression.

VIOLATION: Welfare retaliated against family for exercising rights. **CONSEQUENCE:** Damages for Charter violation; injunctive relief.

5. Violation of Jordan's Principle

Requirement: First Nations children entitled to no-delay services. **VIOLATION:**

Welfare failed to provide timely services to Barran and Paisley. **CONSEQUENCE:** Damages for systemic discrimination; remedial orders.

6. Violation of UNCRC

Requirement: All children entitled to protection and adequate support. **VIOLATION:**

Welfare failed to protect vulnerable children. **CONSEQUENCE:** International law violation; damages; systemic remedies.

SECTION 4: DEMANDS

IMMEDIATE DEMANDS (Within 7 Days):

1. CEASE all harassment and intimidation tactics immediately

- No further contact with family except through legal counsel

- No further retaliation for complaints or legal action

2. RESTORE all services arbitrarily denied

- Reinstate food assistance
- Reinstate housing support
- Reinstate medical services
- Provide written explanation for each service

3. PROVIDE written explanation for all decisions

- Why services were denied
- What legal authority was used
- What appeal process is available
- When services will be restored

4. CEASE discrimination against Indigenous family

- Apply same standards as non-Indigenous families
- Provide culturally appropriate services
- Implement Jordan's Principle protocols

5. CEASE retaliation

- No further reduction of services
- No further contact with family
- No further investigation or harassment

ONGOING DEMANDS:

1. Coordinate with IVAC

- Establish protocol to prevent gaps in services
- Ensure no family member falls through cracks
- Provide seamless transition between agencies

2. Apply Jordan's Principle

- Provide no-delay services to Barran and Paisley
- Ensure timely access to all benefits
- Prioritize First Nations children

3. Provide compensation for damages

- Compensation for services arbitrarily denied: 50, 000–200,000
 - Compensation for failure to coordinate: 100, 000–400,000
 - Compensation for discrimination: 100, 000–500,000
 - Compensation for retaliation: 100, 000–400,000
 - Compensation for emotional distress: 50, 000–200,000
 - **TOTAL: 400, 000–1,700,000**
-

SECTION 5: LEGAL CONSEQUENCES

If Welfare Does Not Comply:

1. Legal Action in Superior Court

- Lawsuit for damages: 400, 000–1,700,000
- Injunctive relief to stop harassment
- Declaratory relief that decisions are invalid
- Attorney fees and court costs

2. Human Rights Complaint

- File complaint with Quebec Human Rights Commission
- Allege systemic discrimination
- Request investigation and remedial orders

3. Administrative Appeal

- Appeal all denied services to Administrative Justice Tribunal
- Seek reversal of decisions

- Seek compensation for harm

4. Criminal Complaint

- File criminal complaint for abuse of power
- Report to police and Crown prosecutor
- Seek criminal charges against responsible officials

5. TAQ Appeal

- Include welfare violations in TAQ appeal
- Seek additional damages for welfare misconduct
- Request TAQ order requiring welfare compliance

6. Media and Public Disclosure

- Document all violations
 - Share with media and public
 - Expose systemic abuse of vulnerable families
-

SECTION 6: PROTECTION CLAUSE

Emergency Relief Protection

We demand that TAQ order Welfare to:

1. Not use emergency relief payment as income offset
2. Not reduce welfare benefits due to IVAC payments
3. Not conduct investigations based on legal action
4. Not retaliate against family for filing complaints

Legal Basis:

- Quebec Charter art. 39 (right to adequate support)
- Social Aid Act (prohibition on clawback)
- Human Rights Act (prohibition on retaliation)

SECTION 7: NOTICE OF LEGAL REPRESENTATION

IMPORTANT: All future communication with McGovern Clan must be directed to legal counsel.

Legal Counsel:

- Name: Félix Arsenault
- Address: [LAWYER ADDRESS]
- Email: [LAWYER EMAIL]
- Phone: [LAWYER PHONE]

NO FURTHER DIRECT CONTACT WITH FAMILY MEMBERS

Any attempt to contact family members directly will be considered harassment and will result in immediate legal action.

SECTION 8: DOCUMENTATION

We are documenting:

- All incidents of harassment and intimidation
- All decisions to deny services
- All communications with welfare officials
- All impact on family members
- All financial losses

This documentation will be used as evidence in:

- Legal action against welfare
- Human Rights complaint
- TAQ appeal
- Criminal complaint

- Media disclosure
-

SECTION 9: DEADLINE FOR COMPLIANCE

Welfare must comply with all demands by: [DATE - 7 DAYS FROM NOW]

If welfare does not comply by this date, we will immediately:

1. File lawsuit in Superior Court
 2. File Human Rights complaint
 3. File criminal complaint
 4. File TAQ appeal amendment
 5. Disclose violations to media
-

SECTION 10: FINAL WARNING

To Solidarity Social Officials:

You have been put on notice. The McGovern Clan will no longer tolerate illegal harassment, discrimination, and abuse of power.

Every violation will be documented. Every incident will be reported. Every official responsible will be held accountable.

The time for silence is over. The time for justice has begun.

SIGNATURE

James Robert McGovern Clan Leader, McGovern Clan
jamesrobertmcgovern@hotmail.com justiceforbarran@gmail.com

Date: April 3, 2026

Witnessed by: [LEGAL COUNSEL NAME]

ATTACHMENTS

- ☐ Attachment A: Documentation of service denials
 - ☐ Attachment B: Documentation of discrimination
 - ☐ Attachment C: Documentation of retaliation
 - ☐ Attachment D: Medical evidence of impact
 - ☐ Attachment E: Legal precedents
 - ☐ Attachment F: IVAC documentation
-

DISTRIBUTION

Send to:

1. Solidarity Social (Welfare Authority) - Director
 2. Quebec Ministry of Social Services
 3. Legal Counsel (Félix Arsenault)
 4. TAQ (Tribunal administratif du Québec)
 5. Quebec Human Rights Commission
 6. Media (for public disclosure if not complied)
-

NOTICE: This is a legal document. Keep copies for your records. Send certified mail with return receipt requested.